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BEFORE THE FEDERAL MARITIME COMMISSION

AL KOGAN d/b/a GALAWAY
INTERNATIONAL,

Complainant/Counter-Respondent,

v

WORLD EXPRESS SHIPPING,
TRANSPORTATION AND
FORWARDING SERVICES, INC
an Illinois corporation, d/b/a
W.E S T FORWARDING SERVICES,
(FMC Lic. # 3 11 S-R),

Respondent/Counter-Complainant.

Docket No 00-04
Administrative Law Judge
Norman D Kline, Presiding

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U.S. MARITIME COMMISSION

**JOINT MOTION FOR APPROVAL OF CONFIDENTIAL
SETTLEMENT AGREEMENT AND DISMISSAL OF ACTION**

Pursuant to Rule 502.73 of the Federal Maritime Commission's Rules of Practice and Procedure, Complainant/Counter-Respondent, Al Kogan, ("KOGAN"), d/b/a Galaway International and Respondent/Counter-Complainant, W.E S T Forwarding Services ("WEST"), by and through their undersigned attorneys, hereby move this Honorable Court, to approve the attached confidential Settlement Agreement and Mutual Releases entered into by and between the parties on November 24, 2000, to dismiss this action with prejudice pursuant to the attached Stipulation of Dismissal executed by the parties, and to maintain the confidentiality of said Settlement Agreement and Mutual Releases

In support of this Joint Motion, the parties state as follows

- 1 On February 25, 2000, Complainant/Counter-Respondent filed a claim against the Respondent/Counter-Claimant for damages in excess of \$250,000.00.
- 2 On April 11, 2000, Respondent/Counter-Complainant responded to that Compliant and served a Counter-Complaint on KOGAN

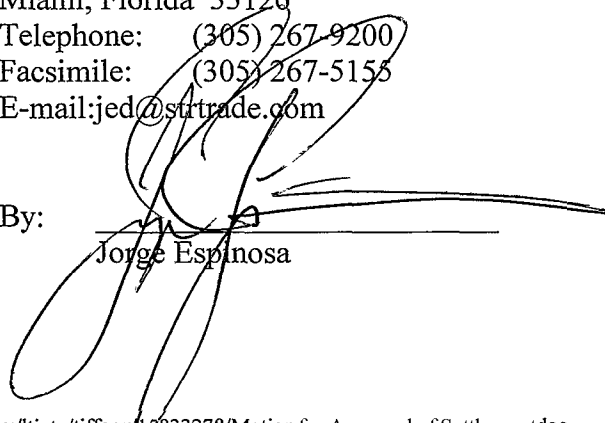
- 3 Parties met for mediation in Chicago on November 16, 2000, before FMC Mediator Ronald
D Murphy and agreed to settle this matter for \$46,000.00.
- 4 A Settlement Agreement and Mutual Releases was prepared and executed by all parties on
November 24, 2000, a copy of which is attached hereto
- 5 Parties have stipulated to a dismissal of this action pursuant to the attached Settlement
Agreement and Mutual Releases entered into by and between the parties on November 24,
2000
- 6 Pursuant to the terms of said Settlement Agreement and Mutual Releases, the parties request
that this Commission maintain the confidentiality of that Agreement, in the mutual interests
of the parties

WHEREFORE, parties move this Court for entry of an Order

(i) approving the attached Settlement Agreement and Mutual Releases, (ii) dismissing
this matter pursuant to the attached Stipulation of Dismissal executed by the parties, and, (iii)
maintaining the confidentiality of the attached Settlement Agreement and Mutual Releases

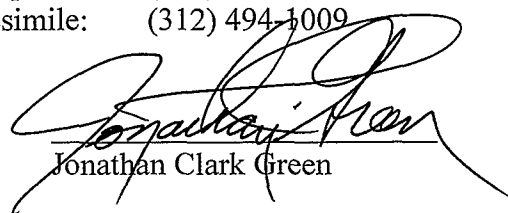
Respectfully submitted,

SANDLER, TRAVIS & ROSENBERG, P.A.
Attorneys for Respondent/Counter-Complainant
The Waterford - Suite 600
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By: 

Jorge Espinosa

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Telephone (312) 494-1000
Facsimile: (312) 494-1009

By: 

Jonathan Clark Green

ORIGINAL

BEFORE **THE** FEDERAL MARITIME COMMISSIONAL KOGAN d/b/a **GALAWAY**
INTERNATIONAL,

Complainant/Counter-Respondent,

WORLD EXPRESS SHIPPING,
TRANSPORTATION AND
FORWARDING SERVICES, INC
an Illinois corporation, d/b/a
W E S T FORWARDING SERVICES,
(FMC Lic. # 3118-R),

Respondent/Counter-Complainant.

Docket No 00-04

Administrative Law Judge

Norman D Kline, Presiding

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FEDERAL MARITIME COMMISSION

STIPULATION OF DISMISSAL

Complainant/Counter-Respondent, Al **Kogan** d/b/a **Galaway** International and Respondent/Counter-Complainant, W E S T Forwarding Services, by and through their undersigned attorneys, hereby stipulate to the dismissal of this action, with prejudice pursuant to the **confidential** settlement agreement in this matter entered into by and between the parties on **November 24**, 2000, with the Federal Maritime Commission retaining jurisdiction to enforce the terms of that agreement and with each party to bear its own attorneys' fees and costs

Respectfully submitted,

SANDLER, TRAVIS & ROSENBERG, P.A.
Attorneys for Respondent/Counter-Complainant
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Facsimile: (312) 494-1009

By:

Jonathan Clark Green

ORDER

Upon the foregoing Stipulation of Dismissal and Joint Motion to Approve Settlement Agreement, Dismiss Complaint and Keep Terms of Settlement Agreement Confidential, it is

ORDERED AND **ADJUDGED** that

- 1 the above action be and the same is hereby dismissed with prejudice, pursuant to the confidential **settlement** agreement in this matter entered into by and between the parties on November 24, 2000,
- 2 this Commission shall retain jurisdiction to enforce the terms of that Agreement;
- 3 the terms of that Agreement shall remain confidential, and
- 4 each party shall bear its own attorneys' fees and costs in this matter

DONE AND ORDERED this ____ day of _____ 2000

Administrative Law Judge

Copies **furnished** to

Jorge Espinosa, Esq
Peggy Chaplin, Esq
Jonathan **Clark** Green, Esq